IN THE SUPREME COURT OF INDIA

CONSTITUTIONAL LAW & FUNDAMENTAL RIGHTS JURISDICTION

(Constitution Bench (7 Judges))

CASE NUMBER: Writ Petition No. 231 of 1977 **CNR: SCIN010002311977**

REPORTABLE CITATION: (1978) 1 SCC 248 DATE: January 25, 1978

CORAM: Hon'ble M.H. Beg, C.J., Y.V. Chandrachud, P.N. Bhagwati, V.R. Krishna Iyer, N.L. Untw alia, S. Murtaza Fazal Ali, P.S. Kailasam, JJ.

Maneka Gandhi v. Union of India and Another

Maneka Gandhi ...PETITIONER(S)

VERSUS

Union of India and Another ...RESPONDENT(S)

HEADNOTE & STATUTORY PROVISIONS CONSIDERED

Acts: Constitution of India, Passports Act, 1967 | Sections: Article 21, Article 14, Article 19, Section 10(

Seven-Judge Bench ruling revolutionizing Article 21 by establishing that 'procedure established by law' must be just, fair, and reasonable, and not arbitrary or oppressive. The government cannot restrict a citizen's passport or personal liberty arbitrarily. The legal procedure must be completely fair, non-discriminatory, and respect natural justice.

RATIO DECIDENDI & BINDING LEGAL PRINCIPLE

The principle of reasonableness, which legally as well as philosophically, is an essential element of equality or non-arbitrariness pervades Article 14 like a brooding omnipresence and the procedure contemplated by Article 21 must answer the test of reasonableness in order to be in conformity with Article 14. It must be 'right and just and fair' and not arbitrary, fanciful or oppressive.

FINAL JUDICIAL DISPOSITION

DISPOSITION: Passport Impounding Quashed & Principles Affirmed (Outcome: Allowed in Principle)

Precedential Authority: Good Law (Foundational 7-Judge Landmark)

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